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Equipment Authorization – Importation

Engineering & Technology

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FCC Rules (Title 47)

Testing Laboratory Qualifications

Importation of radio frequency equipment requires that the product meet one of the eleven conditions as permitted in Code of Federal Regulations, Title 47 Section 2.1204 (please see import condition question one below).

Prior to July 1, 2016, importers were required to file FCC Form 740 in order to import devices, but that requirement was eliminated as of November 2, 2017 via FCC-17-93.

As of November 2, 2017, the requirement to submit a Form 740 has been eliminated, see FCC-17-93. Importation of radio frequency equipment still requires that the product: (1) Have the required FCC equipment authorization; (2) Is only being imported for evaluation purposes; (3) Is only being imported for demonstration at a trade show; or (4) Meets one of the conditions as permitted in Section 2.1204 (see Question 3 below).

Frequently Asked Questions

1. What are the conditions for importing radio frequency devices in the United States?
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1. What are the conditions for importing radio frequency devices in the United States?

The rules for importation are contained in Code Of Federal Regulations Title 47. Part 2, Subpart K – Importation of Devices Capable of Causing Harmful Interference.

Section 2.1204 of Part 2 Subpart K defines the 11 conditions that radio frequency devices may be imported. See https://www.fcc.gov/oet/ea/rfdevice and Knowledge Database (KDB) publication 997198 for guidance and

definitions on Radio frequency devices.

The eleven conditions are summarized below:

1. The radio frequency device has been issued an equipment authorization by the FCC. The equipment has been approved per the required equipment authorization procedure (e.g., Certification or Supplier's Declaration of Conformity (SDoC)) for the device being imported.

2. The radio frequency device is not required to have an equipment authorization, and the device complies with FCC technical administrative regulations. For example, products containing only digital logic that are exempt under Section 15.103..

3. The radio frequency device is being imported in quantities of 4,000 or fewer units for testing and evaluation to determine compliance with the FCC Rules and Regulations, product development, or suitability for marketing. The devices will not be offered for sale or marketed.
   - Prior to importation of a greater number of units, written approval must be obtained from the Chief, Office of Engineering and Technology, FCC (to request approval, see FAQ 8 below or KDB Publication 741304
   - Distinctly different models of a device and separate generations of a particular model under development are considered to be separate devices.

4. The radio frequency device is being imported in limited quantities for demonstration at industry trade shows, and the device will not be offered for sale or marketed. The phrase "limited quantities," in this context means:
   - 400 or fewer units;
   - Prior to importation of a greater number of units than shown above, written approval must be obtained from the Chief, Office of Engineering and Technology, FCC. (To request approval, see FAQ 8 below or KDB Publication 741304.)
   - Distinctly different models of a product and separate generations of a particular model under development are considered to be separate devices

5. A radio frequency device is being imported solely for export. The device will not be marketed or offered for sale in the United States, except:
   - If the device is a foreign standard cellular phone solely capable of functioning outside the United States
   - If the device is a multi-mode wireless handset that has been certified under the Commission's rules and a component (or components) of the handset is a foreign standard cellular phone solely capable of functioning outside the United States.

6. The radio frequency device is being imported for use exclusively by the United States Government.

7. Three or fewer radio frequency devices are being imported for the individual's personal use and are not intended for sale. Unless otherwise exempted, the permitted devices must be from one or more of the following categories:

- Unintentional radiator as defined in part 15 which may include radio receivers, computers or other Class B digital devices in part 15.
- Consumer ISM equipment as defined in part 18.
- Intentional radiators subject to part 15 rules only if they can be used in client modes as specified in Section 15.202.
- Transmitters operating under rules which required a station license as subscribers permitted under Section 1.903 and operated under the authority of an operator license issued by the Commission.

8. The radio frequency device is being imported for repair and will not be offered for sale or marketed.

9. The radio frequency device is a medical implant transmitter inserted in a person or a medical body-worn transmitter as defined in part 95, granted entry into the United States, or is a control transmitter associated with such an implanted or body-worn transmitter; provided, however that the transmitters covered by this provision otherwise comply with the technical requirements applicable to transmitters authorized to operate in the Medical Device Radiocommunication Service (MedRadio) under part 95. Such transmitters are permitted to be imported without the issuance of a grant of equipment authorization only for the personal use of the person in whom the medical implant transmitter has been inserted or on whom the medical body-worn transmitter is applied.

10. Three or fewer portable earth-station transceivers, as defined in Section 25.129, are being imported by a traveler as personal effects and will not be offered for sale or lease in the United States.

11. The radio frequency device is subject to Certification under § 2.907 and is being imported in quantities of 12,000 or fewer units for pre-sale activity. For purposes of this paragraph, quantities are determined by the number of devices with the same FCC ID.
    - The Chief, Office of Engineering and Technology, may approve importation of a greater number of units in a manner otherwise consistent with paragraph (a)(11) of section § 2.1204 in response to a specific request. See FAQ 8 below or KDB Publication 741304
    - Pre-sale activity includes packaging and transferring physical possession of devices to distribution centers and retailers. Pre-sale activity does not include display or demonstration of devices. Except as provided in § 2.803(c)(2)(i), the devices must not be delivered to end users, displayed, operated, or sold until equipment Certification under §2.907 has been obtained.
    - Radiofrequency devices can only be imported under the exception of paragraph (11) of this section after compliance testing by an FCC-recognized accredited testing laboratory is completed and an application for certification is submitted to an FCC-recognized Telecommunication Certification Body pursuant to § 2.911 of this part;
    - Each device, or its packaging, imported under this exception must prominently display a visible temporary removable label stating:
      “This device cannot be delivered to end users, displayed, or operated until the device receives certification from the FCC. Under penalty of law, this label must not be removed prior to receiving an FCC certification grant.”
    - Notwithstanding § 2.926, radiofrequency devices imported pursuant to paragraph (a)(11) of section § 2.1204 may include the expected FCC ID if obscured by the temporary label described in paragraph (a)(11)(iv) this section or, in the case of electronic labeling, if it cannot be viewed prior to authorization.

- The radiofrequency devices must remain under legal ownership of the device manufacturer, developer, importer or ultimate consignee, or their designated customs broker, and only transferring physical possession of the devices for pre-sale activity as defined in paragraph (a)(11) of this section is permitted prior to Grant of Certification under § 2.907. The device manufacturer, developer, importer or ultimate consignee, or their designated customs broker must have processes in place to retrieve the equipment in the event that the equipment is not successfully certified and must complete such retrieval immediately after a determination is made that certification cannot be successfully completed.
- The device manufacturer, developer, importer or ultimate consignee, or their designated customs broker must maintain, for a period of sixty (60) months, records identifying the recipient of devices imported for pre-sale activities. Such records must identify the device name and product identifier, the quantity shipped, the date on which the device authorization was sought, the expected FCC ID number, and the identity of the recipient, including contact information. The device manufacturer, developer, importer or ultimate consignee, or their designated customs broker must provide records maintained under this provision upon the request of Commission personnel.

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2. What is the relationship between harmonization tariff schedule (HTS) codes and the FCC requirements?

The Harmonized Tariff Schedule (HTS) codes are used to identify products subject to tariff requirements. There is no mapping between harmonization codes and FCC requirements. The FCC publishes a basic guidance to help importers and brokers to determine if a product is likely to be subject to FCC requirements, See: KDB Publication 997198. This guidance is only provided to help importers ensure that the product has been properly authorized and that a responsible party is identified. An importer may want to contact the manufacturer or the exporter to ensure that the product has been properly authorized according to the FCC rules.

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3. What are the responsibilities of importers for proof of an equipment authorization?

If requested, the ultimate consignee must be ready to provide to Customs and/or the FCC the specific equipment authorization documentation.

The documentation required depends on the equipment authorization procedure or procedures used:

- Supplier's Declaration of Conformity (SDoC) - The importer of record becomes the responsible party, and must be located within the United States and provide their name, address and telephone number or internet contact information as part of the compliance information for the end product documentation. The FCC has the right to request samples for inspection and submission of equipment for testing, and the test records as per the retention of records rules.
- Certification – The responsible party is the party to whom the grant of certification is issued. The importer can rely on the foreign manufacturer for obtaining a certificate (grant of certification). The FCC may

request samples for certified equipment for FCC inspection. If compliance issues arise, the grantee will be required to address those, or the grant may be subject to revocation or withdrawal of the equipment authorization. Withdrawal would result in the item not being able to be imported, marketed, or sold in the United States.

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4. If the equipment is in port and I just learned about FCC requirements, what should I do?

The equipment cannot be imported into the United States. Options to remedy this situation are to return the equipment to the originating port, or obtain a proper equipment authorization. In some cases, equipment may be placed in a bonded warehouse, or moved to a duty free zone while the application for authorization is being processed. After a proper equipment authorization has been obtained, the equipment can be imported.

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5. What options do I have if I am shipping small quantities of items that are not for sale?

The rules do not distinguish devices being imported for business or personal use and not for sale. The products must comply with the FCC requirements, unless subject to one of the exceptions identified as conditions (3) through (8) in FAQ 1.

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6. What should I do if I left my electronic device in a foreign hotel, or I am returning goods I sent overseas to a trade show or for a demonstration?

Items not purchased overseas (personal items left behind or demonstrated overseas) that are being returned to the United States are technically re-importing goods that have previously been exported (or hand carried in the case of leaving a cell phone in a foreign hotel). They can be imported as returning personal goods.

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7. What equipment labels are required for entry into the United States?

KDB Publication 784748 provides guidance for labeling of equipment per FCC requirements.

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8. How do I obtain a waiver of the quantity limitations as specified in the importation conditions: testing and evaluation or demonstration at industry trade shows, conditions 3 and 4 respectively (see FAQ 1)?

To obtain a waiver of the number of products being imported, see the procedures given in KDB Publication 741304.

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9. Are there any filing requirements for imported devices?

As of November 2, 2017, the requirement to file a Form 740 has been eliminated. As such there is no requirement to file information related to the importation of a RF device with the FCC. (See: FCC 17-93).

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10. If the importation for pre-sale activity under section 2.1204 (a) (11) and the shipment to retailers or distribution centers is in the form of multi-unit packages (e.g., 12 individual devices in one package), is it acceptable to place the temporary label as required by section 2.1204 (a)(11)(iv) only on the outside of the multi-unit package, rather than on each individual device, provided the FCC-ID's on the individual devices can't be seen when enclosed in the multi-unit package?

Manufacturers, developers, importers or ultimate consignee, or their designated customs broker (responsible party) may fulfill the requirements of the rules 2.803 and 2.1204, by following the below alternative procedure. The responsible party for this alternative procedure must be the Grantee obtaining the intended certification of the devices being imported.

1. All devices to be imported under the alternative procedure without a temporary label on each device or device's packaging must be physically secured, enclosed, and contained by a shrink-wrapped pallet, sealed shipping container, sealed carton, or other equivalent multi-unit package bulk enclosure.
2. The responsible party shall maintain a record of each bulk enclosure imported to include: Entry Number, Port of Entry, Date of Entry, Harmonized Tariff, Number, Total Quantity of items, Container Identification, and an inventory of each device by FCC ID(s) by device identification(i.e., serial number), appended to the information required by 2.1204(11)(vii).
3. The responsible party shall remain in possession of the bulk container as exclusive owner and in full control in their facilities (warehouse) until certification has been granted for the FCC IDs contained in that bulk enclosure.
4. If individual devices are removed from a bulk enclosure before an equipment authorization, the responsible party shall obscure the individual FCC Identifier for each device as required by 2.1204(11)(v) with a temporary label described in paragraph 2.1204(a)(11)(iv).
5. If the bulk enclosure is opened for any reason or inspected by customs and border protection officer, resulting in devices being removed from the bulk enclosure by others, the responsible party shall recover all items and re-secure in a bulk enclosure, or apply the temporary label, or if lost or destroyed document the details in the amended record required by item 2 above as appropriate.

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